

Military Order



of the

Loyal Legion

of the



United States



COMMANDERY OF THE DISTRICT OF COLUMBIA.



WAR PAPER 49.

The Battle of Stone River.



Military Order



of the

Loyal Legion

of the



United States



COMMANDERY OF THE DISTRICT OF COLUMBIA.



WAR PAPER 49.

The Battle of Stone River.



The Project Gutenberg eBook of The Battle of Stone River

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Battle of Stone River

Author: Henry Myron Kendall

Release date: April 17, 2010 [eBook #32028]

Most recently updated: January 6, 2021

Language: English

Other information and formats: www.gutenberg.org/ebooks/32028

Credits: Produced by The Online Distributed Proofreading Team at <https://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive/American Libraries.)

*** START OF THE PROJECT GUTENBERG EBOOK THE BATTLE
OF STONE RIVER ***

Military Order of the Loyal Legion

OF THE

United States.



COMMANDERY OF THE DISTRICT OF COLUMBIA



WAR PAPERS.

49

The Battle of Stone River.

**PREPARED BY COMPANION
Major HENRY M. KENDALL,
U. S. Army,**

AND READ AT THE STATED MEETING OF NOVEMBER 4, 1903.

The Battle of Stone River.

After the battle of Perryville, October 8, 1862, a rather leisurely pursuit of Bragg's retreating forces was made on the roads to Cumberland Gap, but no engagement was brought on. It soon appeared that Bragg did not intend to again give battle in Kentucky, but would withdraw into Tennessee and join the force under Breckenridge which had been left to watch Nashville during the invasion of Kentucky. Buell concluded that Bragg would concentrate his entire force near Nashville and endeavor to capture that place and somewhere in its vicinity fight a decisive battle which would determine the fate of West Tennessee and Kentucky. Buell therefore discontinued his pursuit and turned his forces toward Nashville, placing them mainly at Bowling Green, Glasgow, and other points on the Louisville and Nashville Railroad.

A great deal of pressure had been brought to bear upon the Administration to make a campaign in East Tennessee, a mountainous region whose people were mostly loyal. General Halleck in Washington planned a campaign in that region and called upon Buell to carry it out. But Buell declined. His reasons were that such a campaign would place him at a long distance from Louisville, his base, dependent upon wagon transportation alone over almost impassable roads, in a country devoid of supplies and especially suitable to defensive operations. Again, he would be forced to make great detachments to guard Nashville and his lines of communications, since these would be especially open to the attack of the enemy, who was well known to be superior in cavalry.

Buell considered Nashville the vital point of the theatre, and was satisfied that it would be the main point of Bragg's attack. He therefore ignored Halleck's elaborate plan and set about repairing the railway to Nashville and moving his troops in that direction. His previous slowness and indecision had brought him greatly into disfavor, and on the 30th of October he was relieved by Major-General William S. Rosecrans. The district was called thereafter the Department of the Cumberland and the army in the field was designated as the Fourteenth Army Corps. Halleck's

plans were urged upon Rosecrans, but he was of the same opinion as Buell, and it had by that time become plain that Bragg was doing just what Buell thought he would do. Rosecrans concluded to go on in the same direction as had Buell, and the events showed clearly that Halleck's bureau-made plans, based upon theory alone and without an intimate knowledge of the real conditions, were the veriest nonsense, and that Buell and Rosecrans were quite right in ignoring them.

Rosecrans organized the army into right wing, center, and left wing. The right wing, under McCook, consisted of Johnson's, Davis's, and Sheridan's divisions. Thomas commanded the center, which consisted of five divisions under Rousseau, Negley, Fry, Mitchell, and Reynolds. The left wing was commanded by Crittenden, and comprised Wood's, Palmer's, and Van Cleve's divisions. The total available strength of the army formed not more than 60 per cent. of its paper strength, owing to absenteeism. Every endeavor was made to remedy this state of affairs, a condition not peculiar to this army alone, but affecting all the armies almost equally, and constituting a serious evil, for the correction of which severe measures were an absolute necessity.

The army was very deficient in cavalry, and a large portion of its meagre force was very poorly armed. In this condition the army was at a great disadvantage opposed to Bragg, whose cavalry, under Forrest, Morgan, and Wheeler was much greater in numbers and better mounted and equipped.

Rosecrans made strenuous efforts to improve the condition of his cavalry, and succeeded in increasing it to about 4,000 and in obtaining Stanley to command it. But at its greatest strength it was less than half the opposing cavalry force.

Rosecrans' future base of operations was Nashville, but he would be dependent for supplies upon the maintenance of the railroad to Louisville. He hastened to increase the garrison of Nashville, but could not for some time concentrate there owing to the destruction of a railway tunnel near Mitchellsville, which limited him to wagon transportation over bad roads for thirty-five miles. The railway was opened November 26th, and the army was then concentrated near Nashville, with the exception of Reynolds'

division and all but one brigade of Fry's, which were assigned the duty of protecting the railway.

Before advancing it was absolutely essential to place in Nashville a large supply of rations, ammunition, etc., sufficient to support the army during the longest probable break in the railway, as a result of the forays of the rebel cavalry. This required an entire month, and the administration was greatly dissatisfied at the long delay. Rosecrans went through an experience very similar to that suffered by Thomas at the same place later in the war. But to the threats to relieve him he made the blunt reply that if confidence did not exist he was perfectly ready to turn over the command and abide by the issue. Halleck then explained that it was not intended to threaten him, but that there was great anxiety in Washington over the slow course of events in Tennessee. He explained that this arose from diplomatic reasons. It had been greatly desired that a decided advantage be gained over the rebels before the opening of the British Parliament, otherwise the advocates of intervention in favor of the Confederacy would be able to point to the possession of Tennessee as a proof that the South was gaining on the North. It would seem, however, that this was only one of the long series of attempts by Halleck to run the war from an office in Washington—a course that never did and never could result in any good.

Rosecrans continued his preparations carefully, and Bragg concluded that he was going into winter quarters at Nashville. Bragg therefore placed his army in winter quarters at Murfreesboro' and vicinity, and detached his cavalry for operations in West Tennessee and against the railway in Kentucky. This was just what Rosecrans wanted. He wanted Bragg to draw near to Nashville so that his own line of communications might be short and a reverse less disastrous. Rosecrans was also anxious that the rebel cavalry should be distant when he advanced, as his army was very deficient in cavalry.

Morgan's cavalry made a raid upon Hartsville, Tennessee, and on the 7th of December captured a brigade of infantry placed there by Thomas to guard the crossing of the Cumberland. The capture of this brigade was due to neglect of the simplest precautions. No outposts or sentinels of any kind seem to have been used, and the rebel cavalry was in line only 400 yards away before it was discovered. The infantry turned out in great disorder and

was badly managed, so that it was forced to surrender. No word was sent to a supporting brigade but a few miles away, and Morgan was allowed to get away without any loss. He then started for Kentucky and on the 27th of December captured Elizabethtown and destroyed a large section of railway. He kept on to Muldraugh's Hills and destroyed two trestles, each about 500 feet long and 90 feet high. The railway communication was thus effectually broken, and if Rosecrans had remained in Nashville the condition of his army would have been critical. But having completed his preparations and finding the conditions favorable, owing to the absence of Bragg's cavalry, Rosecrans advanced from Nashville on the 26th of December.

Mitchell's division was left to garrison Nashville so that Thomas's command was reduced to Negley's and Rousseau's divisions and Walker's brigade of Fry's. McCook's and Crittenden's wings were on the pikes south and southeast of Nashville. The main body of Bragg's force, consisting of Polk's corps and part of Breckenridge's division of Hardee's corps, was at Murfreesboro'. The remainder of Hardee's corps was near Eaglesville, about twenty miles west of Murfreesboro', McCown's division of Hardee's corps, with a division under Stevenson, formed a separate corps under Kirby Smith at Readyville, twelve miles east of Murfreesboro'.

Rosecrans' plan was to advance in three columns, refusing his right. McCook's corps was to use the Nolensville pike, Thomas the Franklin Pike, and Crittenden the main Murfreesboro' pike. McCook was to attack Hardee and if the enemy held his ground and was reinforced Thomas was to support McCook. If, however, Hardee retreated, McCook was to detach a division to pursue or observe him and move with the remainder of his corps so as to come in on the left rear of the main rebel force. Crittenden was to attack supported by Thomas, whose force was to be directed against the enemy's left.

McCook advanced and after skirmishing all day, followed by a brisk fight towards evening, took possession of Nolensville and the heights about one and one-half miles in front. Thomas followed on the right, closing Negley's division on Nolensville and leaving Rousseau's division on the right flank. Crittenden advanced to LaVergne, with heavy skirmishing, through a rough country, intersected by forests and cedar brakes.

On the 27th, McCook advanced on Triune, but his movements were retarded by a dense fog, which made it impossible to tell friend from foe. Stanley, with the greater part of the cavalry, had joined McCook, and in the fog the cavalry was fired upon by the infantry. The march was stopped until the fog lifted, and Triune was therefore not reached until late in the day, although it was only seven miles from Nolensville.

Thomas moved eastward to Crittenden's right. Crittenden moved forward slowly, delaying his movements until the action of McCook's corps should determine the real state of affairs. Thomas was now in position to support either McCook or Crittenden, as the case might require.

On the 28th, McCook made sure by a strong reconnaissance that Hardee was retreating, and Thomas closed on Crittenden, who remained in position, bringing up his trains and making ready for battle.

On the 29th, McCook left one brigade of Johnson's division at Triune to cover the right and rear, and advanced to within about six miles of Murfreesboro'. The corps was encamped in line of battle with Sheridan's division on the left, Davis in the center, and Johnson on the right. Negley's division of Thomas's corps advanced in support of Crittenden's corps, the head and flank of which reached a point about two miles from Murfreesboro'; Rousseau's division remained at Stewartsboro'. It was now plain that the enemy would give battle near Murfreesboro'. During the afternoon a report reached Rosecrans from Palmer that he was in sight of Murfreesboro' and the enemy was running. He therefore ordered Crittenden to occupy Murfreesboro' with a division. Crittenden sent a brigade across Stone's river and surprised a regiment of Breckenridge's division and pushed it back on the main line. It was found that the rebels were occupying a strong position in force, and, it being then dark, the brigade was withdrawn across the river. Fords were prepared by the pioneer brigade. Negley's, Palmer's and Wood's divisions were in line with Van Cleve's division in reserve.

On the 30th, Rousseau moved up and took position in reserve in rear of Palmer's right. Negley advanced slightly as did McCook's corps. The line generally faced east, but part of McCook's right division was retired so that it faced to the south.

Rosecrans now decided to give battle on the 31st, and made the following plan: McCook was to hold strong ground, refusing his right, and make strong dispositions to resist the attack of the enemy. If, however, the enemy did not attack, McCook was to attack sufficient to hold all the force on his front and prevent the enemy from detaching any troops to the right, the real point of attack. Thomas' corps and Palmer's division were to open with skirmishing and engage the enemy's center and left as far as Stone river. Van Cleve's division was to cross the river and advance on Breckenridge, followed by Wood's division by brigades on its right, and carry everything before them into Murfreesboro'. In front of Crittenden's corps across the river was high ground, the occupation of which would enable an enfilade fire to be brought on the remainder of Polk's corps. Palmer and Thomas were to follow the movement, advancing in its support. After taking Murfreesboro', Crittenden was to move westward and getting in on the flank and rear of the enemy drive them off their line of communications. The success of the whole plan of course depended upon McCook's being able to hold on without support, and Rosecrans criticised his line, saying it was an error for it to face so much to the east. He thought it should rather face to the south and impressed the fact on McCook that he must be careful and make a strong disposition. McCook was ordered also to build fires to his right prolonging the general line and simulating the camps of a large force. It was hoped in this way to draw off a large part of the rebel force from the real point of attack.

Bragg formed an exactly similar plan of attack. Hardee with two divisions was to advance on the left and force back the Union right. Then Polk was to push the center. By a steady wheel to the right on the right of Polk's corps as a pivot the Union force was to be thrown back on Stone river, off its line to Nashville, the objective of his campaign. The plans being identical a good deal depended on which army began the movement first. Rosecrans' orders were for the attack to begin at seven o'clock, while Bragg ordered the attack to begin at daylight.

Rosecrans' movement began on time and for a time was going very successfully. But about 6.30 A. M. the enemy in force attacked McCook's right and found that the two brigades were weakly posted, without support, the remaining brigade of Johnson's division being nearly a mile and a half to the rear at Johnson's headquarters. The command was not in any way

ready for battle. The horses of some of the batteries were being watered at the stream and the men of one brigade were cooking breakfast. Kirk's brigade, the first attacked, tried to make some resistance and called for help upon Willich's brigade, but Willich was absent at headquarters and his brigade was without a commander and made no effort to support Kirk. Both brigades were quickly rolled up. Baldwin's brigade, in reserve, was moved up, but was too far distant, and the rout of the other two brigades was complete before assistance could be rendered. The weight of the attack then fell upon Baldwin, whose brigade, with Simonson's Fifth Indiana Battery, succeeded in checking the assailants and inflicting heavy loss, but was soon forced to retire to avoid being surrounded.

Meanwhile a severe attack had been made all along McCook's front, and after the rout of Johnson's division the flank of Davis's division was exposed. The enemy's attack was repulsed, but he soon reformed, brought up his reserves and renewed the attack. The attack was again repulsed. Davis's division now formed almost a right angle with Sheridan's, and the rebels directed the next attack on the vertex of the angle. Davis's division was driven out of its position, being greatly overlapped, and Sheridan had to withdraw his right, gaining time to do so by charging with Robert's brigade. His new line was at right angles to his first position. Here he held on desperately, trying to reform the broken division to his right. After repulsing several attacks, his ammunition was exhausted and he was forced to fall back, as was also Negley, whose division had been heavily engaged in front and afterward on the right flank.

Word had been sent to Rosecrans soon after seven o'clock that McCook's corps was heavily pressed and needed assistance. But he did not realize the extent of the disaster, and it was not until informed by a second messenger that the right wing was being driven that he realized the true state of affairs. He found then that he must abandon his plan and take every means to prevent the terrible disaster that seemed imminent. He directed the movement on the left to be suspended and placed Rousseau's division in the cedar brakes to the right and rear of Sheridan. As soon as it became plain, from the great amount of fugitives, that McCook's wing was routed, Van Cleve's division was placed on the right of Rousseau's, and a brigade of Wood's division to its right. Negley's and Sheridan's divisions fell back upon this new line. Upon this line the rebels made four distinct attacks, but

were repulsed with very heavy losses. The fighting was almost hand to hand, and the losses on both sides were heavy. That of the regular brigade was especially severe, being 637 out of a total of 1,566. The new line succeeded in holding its ground and driving back the enemy from its front.

The left had also had severe fighting, becoming gradually engaged as Bragg's turning movement went on. As the change of front went on the left became more important until when the final line was formed, close to the Nashville turnpike, the left became the vital point, since a disaster there would have permitted the line to be enfiladed and the stragglers would have carried any resulting disorder along the whole line. During the afternoon Breckenridge made several heavy assaults on Palmer's division, but was repulsed.

Rosecrans succeeded in placing his troops in rather a strong line near the road, and the subsequent assaults of the enemy were repelled. The army slept in the position, spare ammunition was issued and found to be sufficient for another battle. The left was withdrawn slightly to more advantageous ground, and Rosecrans determined to await the attack of the enemy in his new lines, but if Bragg did not attack to do so himself.

During the morning of the 1st of January the rebels made repeated attempts to advance on Thomas's front, but were repulsed. During the afternoon the enemy massed a large number of troops in front of the right but did not attack. Bragg's object was evidently to feel the Union lines and find out if Rosecrans was retreating. Satisfied that he was not, he felt himself unable to attack in view of the heavy hammering his army had received the day before. Rosecrans passed Van Cleve's division across the stream and occupied some hills which threatened Polk's lines in enfilade. Next day Bragg tried to drive back Van Cleve's division, which was commanded by Colonel Beatty. The movement failed after severe fighting. During the night Bragg massed his force on his former right and Rosecrans greatly strengthened his left.

On the 3d Bragg caused a constant picket firing to be kept up to determine if Rosecrans was still holding on. Finding that such was the case he concluded, after consultation with his generals, to retreat. He retreated in good order, his cavalry holding Murfreesboro' until the 5th. On the 5th

Thomas's entire command, preceded by Stanley's cavalry, marched into Murfreesboro'. The object of the campaign had been accomplished. Up to the 31st everything had gone favorably for the Union Army; the fighting of the morning of the 31st had been all in Bragg's favor, and had almost resulted in the total defeat of Rosecrans; but from that time on, everything had again been in Rosecrans' favor. His losses were on the whole greater than those of Bragg, but the latter's retreat gave the victory to Rosecrans.

Rosecrans' force on the battlefield was 43,400; his losses were 13,249, more than thirty per cent. Bragg's total force on the field was 44,750, and his loss 12,334, about 28 per cent. Rosecrans lost 28 pieces of artillery and a large portion of his wagon train, but Bragg lost only three pieces of artillery.

While the result of the campaign was attained the army had nevertheless been very severely handled, and for a time was on the verge of utter ruin. Rosecrans' plan was not at all carried out. The reason for this was the faulty posting and handling of McCook's wing and the fact that Bragg started in earlier in the execution of his attack. Rosecrans knew on the night before the battle that McCook's wing was not correctly placed and ordered changes in it. These were not carried out and Rosecrans made no apparent effort to see that they were.

There has been a great deal of controversy about this matter. One of McCook's division commanders, Johnson, stated in his report that McCook told him that his left was opposite the rebel center, and he expected to be attacked in great force next day. This was, in fact, true, yet McCook certainly did not make such dispositions as to resist any such attack even for a short time, and was compelled to call for such assistance as to wreck the whole plan of battle. If he had placed his corps in a strong defensive position and entrenched it he might have resisted for such a length of time that the main attack could make such progress as to compel Bragg to give up his plan and conform to Rosecrans' movements; just as, in fact, Rosecrans was forced to comply with those of Bragg. The battle is singular in that the opposing plans were identical. It has been called Stone's River by the Union forces and Murfreesboro' by the Confederates.

For the next six months little was done—the Union Army occupying Murfreesboro' and the Rebel army a position near Tullahoma.

Then followed the campaign which terminated in the battle of Chickamauga.

*** END OF THE PROJECT GUTENBERG EBOOK THE BATTLE OF
STONE RIVER ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.